3227

Executive Order

AN ORDER CONCERNING THE SALE AND CONVEYANCE OF CERTAIN CHOSES IN ACTION AND RIGHTS INTERESTS AND BENEFITS UNDER CERTAIN AGREEMENTS, DETERMINED TO BELONG TO, OR TO BE HELD FOR, BY, ON ACCOUNT OF, OR ON BEHALF OF, OR FOR THE BENEFIT OF PERSONS DETERMINED TO BE ENEMIES, NOT HOLDING A LICENSE OR LICENSES GRANTED BY THE PRESIDENT WITHIN THE PURVIEW OF THE "TRADING WITH THE ENEMY ACT" AND THE AMENDMENTS THERETO

By virtue of the authority vested in me by an act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes," approved October 6, 1917, known as the "Trading with the Enemy Act," and the amendment to such act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30th, 1918, and prior fiscal years on account of war expenses and for other purposes," approved March 28, 1918, and the amendment to such act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses and for other purposes," approved November 4, 1918, to make certain orders such as that herein contained, and all other powers and authorities me hereto enabling, I do hereby make the following determination and order:

WHEREAS by Orders dated February 26, 1919, and April 5, 1919, made by Frank L. Polk under the authority of Executive Order No. 3016 of December 3, 1918, the Alien Property Custodian was authorized to sell and convey to the Chemical Foundation, Inc., a corporation organized and existing under and by virtue of the laws of the State of Delaware, certain choses in action and rights, interests and benefits heretofore determined to belong to, or to be held for, by, or on account of, or for the benefit of persons heretofore determined to be enemies; and

WHEREAS it was the intention of the said Executive Orders to authorize the said Custodian to sell and convey thereunder, all choses in action, rights, interests and benefits under agreements and rights and claims of every character and description including rights to receive moneys by way of royalties or otherwise as compensation for the use of patents, trademarks or tradenames, which the Alien Property Custodian may have seized under the provisions of the "Trading with the Enemy Act" as amended, and which he had from time to time determined to relate to the objects and purposes of the said The Chemical Foundation, Inc., as expressed and defined in its charter; and

WHEREAS doubt has arisen as to the authority of the said Alien Property Custodian to sell and convey to the said The Chemical Foundation, Inc. certain of the said choses in action, rights, interests, benefits under agreements, and rights and claims including rights to receive moneys by way of royalties or otherwise, as compensation for the use of patents, trademarks or tradenames;

NOW, THEREFORE, I, Woodrow Wilson, President of the United States of America, do hereby in the public interest, determine and order that the Alien Property Custodian is hereby authorized to sell at private sale, without public or other advertisement, to The Chemical Foundation, Inc., a corporation organized and existing under and by virtue of the laws of the State of Delaware, at such place and upon such terms and conditions as to the Alien Property Custodian may seem proper, all choses in action, rights, interests and benefits

under agreements and rights and claims of every character and description which the Alien Property Custodian may seize or may have seized under the provisions of the "Trading with the Enemy Act" and the amendments thereto now or hereafter enacted and which he from time to time shall determine relate to the objects and purposes of the said The Chemical Foundation, Inc., as expressed and defined in its charter.

The Alien Property Custodian is also hereby authorized in the case of sales heretofore made by him of any property which he is hereby authorized to sell, but as to which his authority to sell the same under the said Orders of February 26, 1919 and April 5, 1919, may be deemed doubtful to confirm and ratify the said sales by the execution and delivery of a suitable instrument of confirmation.

My reasons for the foregoing determination and order are stated in the said orders of Frank L. Polk of the 26th of February 1919 and the 5th of April 1919; and in addition thereto, the public interest will be best served by the elimination of any enemy interest adverse to American citizens arising by reason of said choses in action, or rights, interests and benefits under agreements and by the devoting of any payments made by reason of said choses in action or under said agreements by The Chemical Foundation, Inc., to the promotion of the objects stated in its charter.

Done in the District of Columbia this 13th day of February in the year of Our Lord One Thousand Nine Hundred and Twenty, and of the Independence of the United States the One Hundred and Forty-fourth.

WOODROW WILSON

[No. 3227.]